

25STLC00332 25STLC00332

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-11

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C08%2F11%2F2026

Source SHA-256: d1d8fc0292ec19b610e099c2730a872104d9c194d85bd673fcd87352dc32da7

Case Number: 25STLC00332 Hearing Date: August 11, 2026 Dept: 25

HEARING DATE: Tues., August 11, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Ponce

v. Durham COMP.

FILED: 01-16-25

CASE NUMBER: 25STLC00332

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE ORDER OF DISMISSAL

MOVING PARTY: Plaintiff Emmanuel Beltran Ponce

RESP. PARTY: None

MOTION TO VACATE

DISMISSAL

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court

GRANTS Emmanuel Beltran Ponce's motion to vacate the court-ordered dismissal for failure to appear at trial on July 16, 2026.

The July 16,
2026 dismissal is hereby SET ASIDE AND VACATED.

Pursuant to Code of Civil Procedure section 473,
subdivision (c)(1)(A), the Court imposes a penalty of \$500.00 on Ponce's
counsel, payable to the Court within 30 days of this order.

Ponce is to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 6, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 6, 2026 ☐ Late ☒
None

ANALYSIS:

Emmanuel Beltran Ponce sued Linda
Sue Durham in January 2025. He never
filed proof of service on Durham. (Contra
Cal. Rules of Court, rule 3.110(b).) And
then his counsel failed to appear at the July 16, 2026 trial of his
action. The Court dismissed Ponce's
complaint without prejudice pursuant to Code of Civil Procedure section 581,
subdivision (b)(3). Ponce now moves to
have the dismissal vacated pursuant to Code of Civil Procedure section 473,
subdivision (b)'s mandatory attorney-fault provision.

A

motion under that provision must be (1) timely, (2) in proper form, and (3) accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) A court must grant relief if the party satisfies those requirements, unless the court finds that the default or dismissal was not actually caused by the attorney's fault. (Ibid.)

Ponce's motion, filed the same day as the dismissal, satisfies each of those requirements. His counsel declares that the failure to appear was not Ponce's fault but the result of counsel's "sole mistake and clerical neglect." Ponce's counsel further attests that his "firm's recent and comprehensive transition to a digitized, cloud-based data management system caused . . . the deadlines for service on [Durham] and the hearing date for the trial [to be] inadvertently omitted from the digital tracking system." Just two weeks ago, the same attorney offered the same excuse for his failure to appear at trial in another matter—Richardson v. Lewis (24STLC09462)—and when he did it then, it wasn't the first time he'd done so in recent memory.

Nevertheless, mandatory is mandatory. The Court GRANTS Ponce's motion. The July 16, 2026 dismissal is hereby SET ASIDE AND VACATED.

Pursuant to Code of Civil Procedure section 473, subdivision (c)(1)(A), the Court imposes a penalty of \$500.00 on Ponce's attorney, Eugene Fu, payable to the Court within 30 days of this order.

Additionally, pursuant to Code of Civil Procedure section 473, subdivision (c)(1)(C), the Court ORDERS Eugene Fu personally to review the calendar in every single pending action in which he represents a client before Department 25 of this Court. Within 30 days of this order, Fu is to file a declaration in this action (1) listing each of those actions by name and case number, and (2) attesting under penalty of perjury that he has ensured his calendar accurately reflects all upcoming court dates in those matters.

Because no proof of service has been timely filed in this action, the Court further ORDERS Ponce to SHOW

CAUSE, on Thursday, September 10, 2026 at 9:30 a.m. in Department 25 of the Spring Street Courthouse, why he has failed to file proof of service on the defendant. The Court also ORDERS Ponce to SHOW CAUSE, at the same date, time, and place, why his counsel should not be sanctioned in an amount up to \$250.00 for failure timely to file proof of service in this matter.

Ponce is to give notice.